

IN THE UNITED STATES DISTRICT
COURT FOR THE DISTRICT OF
COLORADO
Magistrate Judge Kathleen M. Tafoya

Criminal Action No: 17-cv-02629-KMT
Courtroom Deputy: Kristina Senamonty

Date: May 6, 2019
Court Reporter: Mary George

Parties:

DARYLL PROPP, and
CAROL A. PROPP,

Plaintiffs,

v.

AMERICAN FAMILY MUTUAL INSURANCE
COMPANY,

Defendant.

Counsel:

Murray Wilkening

Katie Johnson
Sandy Eloranto

COURTROOM MINUTES

JURY TRIAL – DAY 1

8:29 a.m. Court in session.

Court calls case. Appearances of counsel. Court Reporter present.

Court addresses Counsel's Stipulation To Dismiss Bad Faith Claims by Defendant doc # [76] filed on May 3, 2019. Court approves the stipulation. Counsel to speak with their clients re status.

8:41 a.m. Court in Recess.

9:06 a.m. Court in Session.

Counsel present. Court Reporter present.

Discussion over case law re status of case and how to proceed.

ORDERED: The Court finds and rules that this court does have jurisdiction because of the proper attachment of diversity jurisdiction under the contract claim.

ORDERED: Re. doc #72 Plaintiffs brief regarding bad faith claims. The ruling of the court is that Counsel should not mention in opening statement for the Plaintiff anything about Paul Logans evaluation of the case. Does not mean you cannot cross examine him leaving open whether or not you could make that argument during closing argument.

9:40 a.m. Court in Recess.

10:04 a.m. Court in Session.

Appearances of Counsel. Jurors present.

Court's opening remarks to prospective jurors.

Fourteen jurors called to the jury box.

10:17 a.m. Voir dire by the Court.

Court reads statement of case to jurors. Counsel reads list of potential witnesses.

11:01 a.m. Voir dire by the Court continues.

11:30 a.m. Bench conference court excuses juror number 300085220 for challenge for cause.

11:35 a.m. Voir dire by the Court continues.

11:38 a.m. Bench conference discussion regarding any additional challenges for cause.

Peremptory Challenges by Plaintiff:

1. 300083901
2. 300095664
3. 300096851

Peremptory Challenges by Defendant:

1. 300082734
2. 300081396
3. 300093867

11:55 a.m. Eight jurors sworn to try the case.

1. 300100534
2. 300094945
3. 300094039
4. 300086383
5. 300093568
6. 300093926
7. 300096804
8. 300096264

Court instructs jurors. Jurors excused.

12:07 p.m. Court in recess.

1:35 p.m. Court in session.

1:38 p.m. jury present.

1:14 p.m. Court reads preliminary jury instructions.

1:48 p.m. Opening statement by Mr. Wilkening.

1:55 p.m. Opening statement by Ms. Eloranto

Plaintiff's witness, Carol A. Propp present, sworn in.

2:12 p.m. Direct examination of Mrs. Propp.

2:26 p.m. Cross examination of Mrs. Propp.

Exhibits 36, 33 are admitted.

Plaintiff's witness, Robert Schmitz, sworn in.

2:31 p.m. Direct examination of Mr. Schmitz by Mr. Wilkening.

2:37 p.m. Bench conference re the issue of what Mr. Schmitz can testify to in his report.

3:11 p.m. Bench conference re the issue of exhibit 40.

3:23 p.m. Bench conference re the issue of exhibit 40.

3:29 p.m. Court in recess.

3:49 p.m. Court in session.

Continue with direct examination of Mr. Schmitz.

Exhibits 25 pages 6a, 10a, 25-27, 37, 38 page 2, 5-9, 13-17, 19-23, 24

4:26 p.m. Cross examination of Mr. Schmitz by Ms. Eloranto

court instructs jurors. Jurors excused until May 7, 2019 at 9:00 a.m.

5:02 p.m. Court in recess.

Trial continued.

Total in-court time: 6:47